
Case	Title / Nature of Case
2:00 PM	
Line 1	
21-CIV-06029	JOHN SCHOLZ, III VS UNITED AIRLINES, INC., A DELAWARE CORP.,

JOHN R. SCHOLZ
UNITED AIRLINES, INC., A DELAWARE CORP.,

JANE C MARIANI
AMANDA C
SOMMERFELD

Plaintiffs' Motion to Compel Further Responses and for Sanctions

TENTATIVE RULING:

Plaintiffs John R. Scholz, III and Kevin E. Bybee's ("Plaintiffs") Motion to Compel Further Responses and for Sanctions is DENIED.

1. Background and Scope of Discovery

This is a class action arising out of Defendant United Airlines, Inc.'s ("Defendant") sick leave and attendance policies.

On August 2, 2022, the Court (Hon. Swope) issued its Case Management Order #2, which, among other things, bifurcated discovery. The Court ordered as follows:

The Court instructed the parties to set aside all other discovery and focus discovery on the salient issues of: (1) whether United's Sick Leave Plan ("Plan") is governed by the Employee Retirement Income Security Act of 1974 ("ERISA") (and does not fit into any ERISA exemption), (2) whether the Plan is an ERISA-exempted payroll practice, and (3) whether the Plan is funded by a Sick Leave Trust separate from United's general assets.

(CMO No. 2, ¶ 3.) On October 10, 2025, the parties filed a joint stipulation agreeing that "discovery for Phase One, as defined in Case Management Order #2, shall continue." (Stip. & Order, filed Oct. 10, 2025, p. 5:20-21.)

2. Legal Standard for Motion to Compel

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking

discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(CCP § 2017.010.)

(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

- (1) An answer to a particular interrogatory is evasive or incomplete.
- (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.
- (3) An objection to an interrogatory is without merit or too general.

(b)

- (1) A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.
- (2) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.

(c) Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.

(d) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(CCP § 2030.300(a)-(d); see also 2031.310(a)-(c), (h) [parallel requirements for demands for inspection].)

“The ruling [on a motion to compel] usually is based on consideration of the following factors: [¶] The relationship of the information sought to the issues framed in the pleadings; [¶] The likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] The burden or expense likely to be encountered by the responding party in furnishing the information sought. [*Columbia Broadcasting System, Inc. v. Sup.Ct. (Rolfe)* (1968) 263 CA2d 12, 19, 69 CR 348, 352]” (Weil & Brown, *Cal. Prac. Guide: Civ. Proc. Before Trial* (Rutter, June 2026 Update), ¶ 8:1181.) Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)

3. Procedural Issues

Defendant argues that while Plaintiffs filed their motion and supporting papers on the June 17, 2026, filing deadline, the submission “was missing all required exhibits.” (Opp., p. 11:23-25.) Plaintiffs then refiled their motion, adding 450 pages of exhibits, which Defendant argues “is not a minor correction” but is instead “an entirely different – and late – submission.” (Id. at p. 12:5-7.)

Defendant also identifies several inconsistencies between the sets of discovery disputes and relief requested between Plaintiffs’ notice, motion, and concise statement:

- “The Notice seeks further responses to SROG Nos. 1 and 4–9, RFP Nos. 2, 8, 10, 12, 15–17, 23–37, 39, 40–51, and 54–58, but says nothing about further production,” while the motion “challenges United’s alleged failure to ‘produce all responsive’ material” (Opp., pp. 12:24-13:1);
- “the Memorandum’s introduction omits seven RFPs from the Notice (Nos. 23–25, 30, 32, 36, and 42), but its argument section then adds discussion of United’s responses to RFP Nos. 1, 3–4, 7, 9, and 19–20, as well as SROG No. 2—none of which appears in the Notice” (Id. at p. 13:1-4);
- the Concise Statement “matches the Memorandum’s introductory omissions, but it does not include the extra RFPs or SROG No. 2 discussed only in the Memorandum’s argument section” (Id. at p. 13:5-6.)

Plaintiffs’ counsel provides in her reply declaration that she submitted the declaration on June 17, 2026, via OneLegal, but it was rejected due to the filing not including a hearing date. (Mariani Dec. ISO Reply, filed July 31, 2026, ¶¶ 15-16.) Once Plaintiffs’ counsel noticed the rejection, she contacted the Court, received a hearing date and re-filed. (Id. at ¶ 16.) Plaintiffs’ counsel states, “I was unaware that the entire declaration did not upload until the documents were returned to me on June 18, 2026.” (Ibid.) She states that to her knowledge, Defendant did not request additional time, seek to strike exhibits, or otherwise assert it was unable to address evidence provided by Plaintiffs; and that Defendant “extensively cites, quotes, and analyzes those exhibits,” evidencing that Defendant had a full and fair opportunity to respond. (Id. at ¶ 17.)

“There is no authority under the Discovery Act for relief for untimely motions to compel further responses to interrogatories. [¶] Relief for untimely motions may be available, however, under CCP § 473(b) based on ‘mistake, inadvertence, surprise, or excusable neglect’ (see ¶ 5:282 ff.). CCP § 473(b) relief is available only where the Discovery Act contains no analogous provision for relief. [See *Zellerino v. Brown* (1991) 235 CA3d 1097, 1107, 1 CR2d 222, 228, discussed at ¶ 8:10.5 ff.]” (Weil & Brown, *supra*, at ¶ 8:1150.)

The situation here is distinguishable from Defendant’s cited case of *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, *supra*, because here, Plaintiffs’ notice of motion included the specific SROGs and RFPs it was challenging, the grounds for the motion, the statutory sections the motion relied on, and a list of the documents it would be relying on. It is also distinguishable from Defendant’s other cited case of *Weinstein v. Blumberg* (2018) 25 Cal.App.5th 316, 318–22, because the

delay here was less than one day.

Plaintiffs' counsel explains in her declaration that the filing was rejected based on not having a hearing date and that she did not realize when she made the initial filing that the supporting documents were not attached. The Court finds that relief therefore is appropriate under CCP § 473(b).

As for the discrepancies between the requests identified in the notice of motion but not in the concise statement or memorandum, Plaintiffs clarify in their reply brief that the relief sought by the motion is limited to the RFPs and SROGs identified in the notice of motion, and other requests were identified in the memorandum "as illustrative context for the pattern of conduct at issue." (Reply, p. 4:3-9.)

California Rules of Court Rule 3.1345 the following as to the required contents for a separate statement:

A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference.

(CRC Rule 3.1345(c).) Although the Court now allows a moving party to submit a concise outline, this would not seem to affect a party's requirement to provide all information necessary to understand each request. This necessarily means that all requests for which Plaintiffs seek relief must be in the concise statement. Additionally, without having included each request in the concise statement, Plaintiffs have failed to provide specific grounds for compelling further responses to those RFPs which Plaintiffs omitted. The Court therefore declines to rule on the following Requests for Production, Set Three: 23-25, 30, 32, 36, and 42, i.e. for these the motion is DENIED.

4. Meet and Confer

A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.

(CCP § 2016.040(a).)

Plaintiffs state that they "have met and conferred with United on several occasions over the discovery disputes at issue, exchanged extensive correspondence regarding these disputes, and participated in an Informal Discovery Conference with the Court." (MPA, filed June 18, 2026, p. 3:14-16.) While Defense counsel sought to meet and confer prior to serving its responses, Plaintiffs' counsel requested a written basis of Defendant's anticipated responses prior to that meeting, which Defense counsel countered was unnecessary. The parties therefore did not meet and confer until after Defendant served its responses.

Once Defendant served its responses, the parties had meet and confers on five different dates prior to Plaintiffs filing their motion. (Mariani Dec. at ¶ 25.) Plaintiffs' counsel sent a "comprehensive deficiency letter" on March 16, 2026, to which Defendant provided a response on April 15, 2026. (Id. at ¶¶ 26, 28.) Defendant also served supplemental RFP and SROG responses. (Id. at ¶ 28.) The parties then held two additional zoom conferences and exchanged additional correspondence. (Id. at ¶¶ 29-31.) Concluding that the parties had reached an impasse, Plaintiffs' counsel requested an IDC hearing with the Court, which was held on June 9, 2026. (Id. at ¶¶ 32-33.) At the conclusion of the IDC, the Court found that based on the record, there did not appear to be a basis for a motion to compel. (Minute Order, June 9, 2026, p. 1.) Despite this advisory, Plaintiff pressed forward and filed this motion.

The Court finds that the parties adequately met and conferred, except as to certain enumerated requests discussed below.

5. Analysis

Plaintiffs seek additional responses from Defendant to the following discovery requests: (1) Special Interrogatories, Set Two, ("SROGs, Set Two"), Nos. 1, 4-9; and (2) Requests for Production of Documents, Set Three ("RFPs, Set Three"), Nos. 2, 8, 10, 12, 15-17, 26-29, 31, 33-35, 37, 39-41, 43-51, and 54-58.

The Court denies the motion as to SROGs 1, 4-9 and RFPs 2, 8, 10, 12, 15-17, 26-29, 31, 33-35, 37, 39, 40-41, and 43-51.

For those responses which Plaintiffs challenge on the basis that they are evasive or boilerplate, the Court finds that Defendant's responses are adequate.

Plaintiffs argue that Defendant unilaterally narrowed the scope of discovery; but based on Defendant's definition of the scope of discovery as provided in several of its responses to the requests, Defendant is complying with the Phase 1 scope as identified by the Court. Plaintiffs have failed to demonstrate that the information sought by these requests is reasonably calculated to lead to admissible evidence as to Phase 1 discovery (i.e., SROG 1 & 7; RFPs 12, 16, 28, 29, 51, 54-58). As to RFP's 54-58, the requests clearly exceed the Phase 1 scope, and Defendant's objections on that basis are sustained.

The Court finds as to another subset of these challenges that Plaintiffs seek through this motion to rewrite or add on to requests and ask the Court to find Defendant's answers incomplete on that basis (i.e., SROGs 4, 5-6, 8; RFPs 8, 41, 48). The Court declines to do so.

The remaining challenges are simply without merit (i.e., SROGs 7, 9, 10, 15, 37).

For those responses which Plaintiffs challenge on the basis that Defendant failed to provide an additional privilege log, the Court finds that Plaintiffs failed to meet and confer on the majority of these requests and/or on the specifics of an claimed deficiency of the log provided, and therefore denies the motion to compel as to these requests (i.e., RFPs 2, 17, 26-27, 31, 33-35, 39-40, 43-47, 49-50, 54-58).

Defendant argues in its opposition motion that Plaintiffs failed to meet-and-confer over most of the privilege-log issues they now raise. (Opp., p. 11:11-12.) They argue that after Defendant filed its supplemental response, Plaintiffs raised privilege concerns for seven responses, and Defendant withdrew privilege objections for all of those requests. (Id. at p. 11:12-15.) Plaintiffs then challenged privilege objections as to RFPs 17, 40, and 54-58, but Defendant argues that Plaintiffs now request privilege logs for nineteen RFPs not mentioned during the meet and confer process. (Id. at p. 11:15-18.) Plaintiffs do not address this claim in their reply. A good faith meet and confer, is not an opportunity for Plaintiff to present a moving target for never ending amendments.

CCP § 2016.040 requires a good faith attempt to resolve “each issue presented by the motion.” Failing to meet and confer as to “any dispute concerning discovery” constitutes a misuse of the discovery process. (CCP § 2023.010(i).) This failure to meet and confer does not always warrant denial of the requests, but the decision lies in the court’s discretion. (See *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431; *In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1296.)

The Court does not believe that Plaintiffs and Plaintiffs’ counsel’s initial actions automatically fall into any of the categories of “egregious” conduct identified in *Marriage of Moore, supra*. The fact that Plaintiffs’ counsel did not agree to meet and confer with Defendant’s counsel prior to service of answers without an outline of issues in place does not mean counsel was refusing to meet and confer overall. Counsel clearly made several efforts to meet and confer, including counsel’s 146-page deficiency letter on March 16, 2026. (Mariani Dec., Exh. 5.)

However, the e-mails attached to Plaintiffs’ counsel’s declaration show that Plaintiffs’ counsel did not send that letter until three months after Defendant served its responses, which is facially unreasonable. After two weeks without a response, Plaintiffs’ counsel e-mailed Defense counsel asking that they respond in a mere 8 business days. (Id. at Exh. 6.) Defense counsel responded to the letter on April 15, 2026, Plaintiffs’ counsel sent another letter on May 8, 2026, and Defense counsel responded with another letter on May 18, 2026. (Id. at Exh. 7, 9-10.) It was after reviewing that letter that Plaintiffs’ counsel stated that the parties were at an impasse. (Id. at Exh. 11.)

Having reviewed the specific requests that Plaintiffs request further responses to through this motion, the Court finds that the motion is abusive. As Defendant notes in its opposition and as found above, for several of the requests, Plaintiffs do not appear to have even read Defendant’s supplemental responses and attempt to rewrite questions. Plaintiffs also take issue with several responses for not providing specific additional information that Defendant could not have known based on the requests as posed.

Given all of this, the Court declines to compel more detailed privilege logs for those requests on which Plaintiffs failed to meet and confer.

6. Sanctions

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(CCP § 2030.300(d); see also CCP § 2031.310(h) [parallel provision regarding RFP responses].)

Plaintiffs argue that terminating, evidentiary, issue, or monetary sanctions are warranted because “United had no substantial justification to refuse to provide adequate, complete answers to Plaintiffs’ discovery requests; to refuse to provide all identified, responsive documents, or to make dozens of baseless and unexplained objections.” (MPA, p. 13:7-9.)

Aside from these sanctions not being warranted given that this motion is not meritorious, Plaintiffs have also failed to provide any basis for the court to award evidentiary, issue, or terminating sanctions. For issue sanctions, Plaintiffs do not specify which facts they believe the court should take as established, or which claims or defenses they think Defendant should be prohibited from asserting. (See CCP § 2023.030(b).) For evidentiary sanctions, they do not specify what evidence should be excluded. (Id. at § 2023.030(c).) For terminating sanctions, they do not state whether pleadings should be stricken (nor identify which pleadings), the matter stayed or dismissed, or default judgment entered. (Id. at § 2023.030(d)(1)-(4).)

As Plaintiff’s motion has failed, the Court will not award Plaintiff any monetary sanctions either. As Defendant notes, Plaintiffs’ counsel failed to specify in the notice of motion which sanctions Plaintiffs would be seeking and failed to provide any of the supporting facts for monetary sanctions. While Plaintiffs’ counsel provided this information as part of the reply, Defendant did not oppose this motion without substantial justification. Most of Defendant’s grounds for opposing the requests were reasonable as evidenced by this Court’s ruling.

However, Defendant has noticed and requests that **“The Court Should Sanction Plaintiffs and Their Counsel.”** Opp., pg. 13 (emphasis in original). Sanctions are sought “for filing a motion with no justification.” (Opp., pg. 13, lines 18-19.) Defendant has thus provided specific notice for its request for sanctions. See also, Caleb Decl. ¶¶31-37. There is an adequate basis for the award of attorney’s fees. Caleb Decl., pg. 9-10, ¶ 31-37. The time spent is provided, and for purposes of this motion the hourly rates charged are generally reasonable since Defendant is not seeking all of its time and as the Court is using its discretion to reduce the charge. Defendant has incurred a total of \$87,743.67 for opposing this motion and in the efforts which included the “review of two different sets of motion papers and almost 500 pages of materials.” Caleb Decl., pg. 9, line 4. Despite the enormity of the fees incurred, Defendant reduced their request for sanctions to \$43,871.84. Opp., pg. 17, line 8. Notably, Defendant has never requested sanctions in this case before and this is a case where there have been numerous discovery disputes. D- MPA, pg. 17, line 10, and Caleb Decl. pg. 9, line 27.

The Court unfortunately agrees with Defendant that this motion is an abuse of discovery that warrants heavier than typical sanctions. A significant factor, is that this Court held an IDC before this motion was even filed, and Plaintiffs were essentially put on notice that “there does not appear to be a basis for any motion to compel.” Minute Order, 06/09/2026. It would have been prudent for Plaintiffs to heed the implied warning from the Court. The very purpose of the IDC, is to avoid unnecessary motions.

The long history in this case where there have been approximately eight IDC’s scheduled or conducted, supports Defendant’s complaint of Plaintiff having “propounded serial discovery requests, both on United and third parties.” D-MPA, pg. 2, lines 8-9. Defendant has also long sought the appointment of a discovery referee, and the amount of sanctions today would likely be dwarfed by any shared referee costs. The Court takes no pleasure in this outcome, but it has no choice in finding this motion is abusive and was not brought in good faith. As such, the Court awards Defendant with \$20,000.00 in sanctions jointly and severally against Plaintiffs and Plaintiffs’ counsel, payable within sixty-days.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
